

TENTATIVE RULINGS

Date: August 13, 2026

#	Case Name	Tentative
1.	30-2025-01506784 Castro vs. Acevedo	1. Case Management Conference 2. Demurrer to Answer Plaintiff Erasmo Castro’s (“Plaintiff”) demurs to the Answer of Martin Alejandro Flores Acevedo (erroneously named herein as Martin Flores Alejandro Acevedo) (“Defendant”). The demurrer is unopposed. Plaintiff first demurs to the contention in Defendant’s Answer that he was <u>not properly served</u> because the Complaint names him incorrectly. Defendant was named in the Complaint as “Martin Flores Alejandro Acevedo,” but his legal name is Martin Alejandro Flores Acevedo. However, “if the service is otherwise properly made, and the person served is aware that he is the person named as a defendant in the erroneous manner, jurisdiction is obtained.” (Sakaguchi v. Sakaguchi (2009) 173 Cal.App.4th 852, 857.) It appears that Defendant understands that he is the person named in the Complaint. Further, to challenge service, the proper procedure would have been to file a motion to quash service of summons pursuant to Code of Civil Procedure section 418.10. However, the time to file such a motion is “on or before the last day of [defendant’s] time to plead or within any further time that the court may for good cause allow.” (Code Civ. Proc., § 418.10(a).) Because the time has elapsed to file such a motion, the <u>demurrer as to this affirmative defense</u> is SUSTAINED without leave to amend. Plaintiff also demurs to Defendant’s affirmative defense that Plaintiff’s <u>claims are false and made in bad faith</u>. Plaintiff contends that the Answer fails to state facts sufficient to constitute this defense. An answer may include a general denial, specific denial, or new matter constituting an affirmative defense. (Code Civ. Proc., § 431.30.) “ ‘The phrase “new matter” refers to something relied on by a defendant which is not put in issue by the plaintiff. [Citation.] Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as “new matter.” ’ ” (Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 812.) “Such ‘new matter’ is also known as ‘an affirmative defense.’ ” (Ibid.) “Affirmative defenses must not be pled as ‘terse legal conclusions,’ but ‘rather . . . as facts “averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint.” ’ ” (Id. at pp. 812-813.) The defense that Plaintiff’s claims are false is tantamount to a general denial. Since it does not add any new matter, it therefore does not fail for lack of details or facts. On the other hand, the allegation that Plaintiff’s claims are made in bad faith does raise new matter, but is not supported by facts.

		Accordingly, the demurrer is SUSTAINED with 20 days leave to amend as to Defendant's defense that Plaintiff's claims are made in bad faith. The <u>reminder of the demurrer</u> is OVERRULED. Plaintiff to give notice.
3.	30-2025-01454243 Guarino vs. Obradovich	1. Case Management Conference 2. Motion to Strike Portions of Complaint Defendant Piper Anne Obradovich ("Obradovich") moves this Court for an Order striking from the Complaint the prayer for punitive damages (Prayer, page 3, ¶ 14(a)(2)). Multiple authorities exist which address punitive damages, specifically, in the context of alleged drunk driving. Most notable, the California Supreme Court in <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, concluded that "the act of operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (<i>Id.</i> at p. 892.) The court expressly acknowledged that "conscious disregard" may constitute malice, and elaborated: "In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences." (<i>Id.</i> at pp. 895-896.) The Court in <i>Taylor</i> examined a complaint which alleged: "Defendant became intoxicated and thereafter drove a car while in that condition, despite his knowledge of the safety hazard he created thereby." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 896.) The Court noted that the above was "the essential gravamen of the complaint," and further noted that "while a history of prior arrests, convictions and mishaps may heighten the probability and foreseeability of an accident, we do not deem these aggravating factors essential prerequisites to the assessment of punitive damages in drunk driving cases." (<i>Ibid.</i>) In finding the allegations therein sufficient to support punitive damages, the Court explained: "There is a very commonly understood risk which attends every motor vehicle driver who is intoxicated." (<i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 896-897.) "One who willfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents." (<i>Id.</i> at p. 897.) The court also noted that drunk driving is an extremely serious national problem, and one upon which punitive damages can have a positive impact. (<i>Ibid.</i>) In <i>Peterson v. Superior Court</i> (1982) 31 Cal. 3d 147, the California Supreme Court again found allegations of intoxicated driving sufficient to support a claim of punitive damages where facts were alleged that the Defendant knew of the probable serious injury to others from his drunk driving. (<i>Id.</i> at p. 163.) The Court in <i>Peterson</i> specifically noted that the Complaint therein "allege[d] that defendant drove the vehicle with knowledge that probable serious injury to other persons would result and in conscious disregard of the safety of plaintiff." (<i>Ibid.</i>) In finding the Complaint therein sufficient, the Court in <i>Peterson</i> explained: "The gravamen of the proposed complaint, as of the complaint in <i>Taylor</i>, is that '[d]efendant became intoxicated and thereafter